

Gajendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 May 2016 · Writ-C No. 19536 of 2016 · Writ - C No. 19536 of 2016 · **Recovery certificate dated 29.02.2016 quashed; writ allowed.**

HEADNOTE

A recovery certificate issued without a prior provisional assessment, contrary to the mandatory procedure in clause 6.8(b) of the U.P. Electricity Supply Code, 2005, cannot be sustained and is liable to be quashed.

FACTUAL SUMMARY

The petitioner challenged a recovery certificate dated 29 February 2016 issued by the electricity authorities. He alleged that recovery had been started without a provisional assessment and without notice giving him a chance to object. On 29 April 2016 the Court stayed coercive action and called for instructions. At the final hearing, counsel for the distribution licensee fairly stated on instructions that no provisional assessment had been made before the recovery certificate issued.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 is mandatory; a recovery certificate issued without a prior provisional assessment is unsustainable. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional assessment before recovery

HOLDING

In the absence of a provisional assessment and of compliance with clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, a recovery certificate is not liable to be sustained and is quashed. ¶ 1

PRINCIPLE TAGS

clause-6.8-hearing-procedure-mandatory-before-uue-conclusion A recovery certificate issued without a prior provisional assessment, contrary to the mandatory procedure in clause 6.8(b) of the U.P. Electricity Supply Code, 2005, cannot be sustained and is liable to be quashed. ¶ 1